

TENTATIVE RULING

Angel Oseguera v. Kia America, Inc. (26CV000828)

Defendant Kia America, Inc.'s Motion for Entry of Protective Order to Govern Production of Confidential Materials:

By this motion, Defendant Kia seeks the entry of a protective order governing treatment of confidential, proprietary, and trade secret information that is subject to mandatory production under Code of Civil Procedure section 871.26(h). Plaintiff Oseguera opposes the motion on the basis that the mandatory production requirements of Code of Civil Procedure section 871.26(h) are silent as to protective orders and therefore should not permit the use of protective orders. Plaintiff Oseguera further opposes the motion on the basis that Kia has failed to establish that the documents it seeks to protect are actually confidential business records.

The motion for entry of a protective order is **GRANTED**.

The fact that section 871.26 is silent as to protective orders does not limit the court's jurisdiction to utilize a protective order if appropriate. "[G]aps left unaddressed by statutes—that is, legislative silence—are still gaps, and may be filled by courts through the exercise of their inherent authority in the absence of a clear legislative intent to the contrary that goes beyond the silence itself." (*Chavez v. Superior Court* (2024) 99 Cal.App.5th 165, 180.) "The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc., § 2031.060(b).) A protective order may include "[t]hat a trade secret or other confidential research, development, or commercial information not be disclosed, or be disclosed only to specified persons or only in a specified way." (Code Civ. Proc., § 2031.060(b)(5).)

Here, the proposed protective order allows disclosure of information that either party may designate as confidential but limits its use and disclosure to individuals and purposes necessary for litigation of this action. Further the proposed order provides a reasonable process for either party to object to the designation of any specific item as confidential. For purposes of this motion, Kia has presented sufficient evidence that a protective order is warranted, and the proposed order will not prejudice the plaintiff.

Defendant is to prepare the court's order consistent with the tentative ruling.

NOTE RE: TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by complying with Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9.

Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.**

You must notify the court by emailing TentativeRulings@monterey.courts.ca.gov or by telephoning the Calendar Department at (831) 647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.